

Overview

MUN Conference: SESB-MUN, July 1-3 2026

Committee: GA6 (legal) committee

Issue: Evaluating the continued feasibility of the right to asylum in the 21st century

Chairs (as of 25.05.2026): Lucie Leetz and Hannah Bauer

Related SDGs: Goal 1, Goal 10 and Goal 16

Table of Contents

Overview	1
Table of Contents	2
I. Introduction	3
II. Defining Key Terms	4
Asylum	4
Asylum seeker	4
Credibility assessment	4
Legal protections (specifically for asylum seekers)	4
Mandatory detention	4
Migrant	5
Non-refoulement principle	5
Procedural fairness	5
Refugee	6
Release policy	6
III. Background Information	7
Major conflicts affecting asylum seekers	7
Important past resolutions and events	8
Universal Declaration of Human Rights (1948):	8
1951 Protocol Relating to the Status of Refugees (1951 Refugee Convention):	8
Protocol Relating to the Status of Refugees (1967 Protocol):	8
2016 New York Declaration for Refugees and Migrants:	9
Future issues regarding asylum	10
Global warming:	10
Who qualifies for asylum:	10
IV. Major state and non-state actors	11
Columbia and Venezuela	11
Member states of the European Union	11
The United States of America	11
Uganda, the DRC and South Sudan	11
Ukraine, Afghanistan and Syria	12
Amnesty International	12
V. Bibliography (optional appendix):	13

I. Introduction

Asylum is considered one of the defining issues of the 21st century, an issue that has shaped political discourse, human rights and legislation. It has been a topic of election campaigns and political action, particularly throughout the past few decades due to rising numbers of asylum seekers. However, when considering asylum we must consider the human aspect, as well as the political one. In a world that is shaped by polarization and conflicting opinions, we must remember to find solutions that prioritise the needs of people over winning elections or gaining public favour. As chairs we urge you to consider this while writing your resolutions and debating other delegates.

Since 2000, around 117.3 million people have been forcibly displaced due to conflicts, persecution, natural disasters or war, of which millions are asylum seekers. Asylum ensures protection for many of these refugees from persecution and violence. This makes it one of the most important legal protections available to those escaping threatening situations. Additionally, the rising number of major global conflicts and the imminent threat of climate change related displacement makes the issue of asylum one of the most urgent and crucial of the 21st century.

Despite its importance, countries are still faced with regulating asylum and who is protected by it. When focusing on the right to asylum, countries must safeguard the rights of refugees and asylum seekers, while ensuring that the system is not abused by criminals and terrorists. This is the issue where most countries differ in policy and where disagreement unfolds. The leading question when tackling the right to asylum is: where is the line drawn?

In regards to the SDGs (Sustainable Development Goals), our topic is linked to the goals of *No Poverty* (Goal 1), *Reduced Inequality* (Goal 10) and especially, *Peace, Justice and Strong Institutions* (Goal 16). Goal 16 specifically, underlines the importance of legal protections and fair treatment of refugees. This emphasizes the importance and urgency of our topic in the current political landscape.

As delegates, your task will be to find common ground on the issue of asylum. You will be expected to debate the rights of asylum seekers and refugees, the responsibilities of host countries and resettlement, as well as international cooperation and global conflicts impacting asylum seekers.

II. Defining Key Terms

Asylum

Asylum is the protection granted by a state to persons who are outside their own country of nationality or habitual residence, and are seeking safety from persecution, serious harm, or for other compelling reasons. This protection includes a range of elements such as protection from being returned to danger (non-refoulement), permission to remain in the asylum country, humane treatment, and access to durable solutions. To determine whether someone qualifies for asylum, individuals usually undergo a process called Refugee Status Determination (RSD)¹.

Asylum seeker

An asylum seeker or asylum-seeker is a person who leaves their country of residence, enters another country, and makes in that other country a formal application for the right of asylum according to the Universal Declaration of Human Rights Article 14. A person keeps the status of asylum seeker until the right of asylum application has concluded².

Credibility assessment

A credibility assessment is a process which asylum seekers go through to assess whether they are eligible for protection under international and domestic legal frameworks. The credibility assessment includes reviewing the asylum seekers testimony, analysing their narrative and evaluating the threat of persecution or harm to the persons being. It is note-worthy that the credibility assessment is reviewed domestically and the process relies heavily on specific laws and practices within the country.

Legal protections (specifically for asylum seekers)

Legal protections are regulations and laws which protect and safeguard the rights of individuals and ensure fair treatment under the law. They are essential for maintaining justice and equality within society. For asylum seekers these include: the right to seeking asylum, a temporary stay of deportation, legal assistance with the complex immigration process and access to social services, such as healthcare and certain educational benefits.

Mandatory detention

Mandatory detention is the practice of imprisoning an individual under specified circumstances, without regard to whether doing so is necessary or appropriate in the individual case.³

¹ <https://help.unhcr.org/global/asylum-and-refugee-status/#what-is-asylum?%C2%A0>

² https://en.wikipedia.org/wiki/Asylum_seeker

³ <https://litigationtracker.justiceactioncenter.org/topic/detentionmandatory-detention>

Mandatory and indefinite detention are forms of arbitrary detention from which States are prohibited.⁴

Migrant

Traditionally, the word 'migrant' has been used to designate people who move by choice rather than to escape conflict or persecution, usually across an international border ('international migrants'), for instance to join family members already abroad, to search for a livelihood, or for a range of other purposes. The term is increasingly used as an umbrella term to refer to any person who moves away from their usual place of residence, whether internally or across a border, and regardless of whether the movement is 'forced' or voluntary.⁵

Non-refoulement principle

The principle of **non-refoulement** is the cornerstone of asylum and of international refugee law. Following from the right to seek and to enjoy in other countries asylum from persecution, as set forth in Article 14 of the Universal Declaration of Human Rights, this principle reflects the commitment of the international community to ensure to all persons the enjoyment of human rights, including the rights to life, to freedom from torture or cruel, inhuman or degrading treatment or punishment, and to liberty and security of person. These and other rights are threatened when a refugee is returned to persecution or danger.⁶

Procedural fairness

Decision-makers have a legal obligation to make decisions in a procedurally fair and transparent manner. To ensure this duty is met, parties to an administrative process are given certain procedural fairness protections based on the nature of the decision being made and its impact on the parties. At a minimum, you generally have the following procedural fairness protections:

- **Unbiased decision-maker:** parties have a right to a decision-maker that acts in a neutral and unbiased manner, free from influence that could lead a reasonable person to doubt their impartiality.
- **Notice:** parties must be given enough information about the matter being considered and the decision being made to participate meaningfully in the decision-making process.

⁴ <https://www.unhcr.org/us/sites/en-us/files/legacy-pdf/631f449d4.pdf>

⁵ <https://emergency.unhcr.org/protection/legal-framework/migrant-definition>

⁶ <https://www.refworld.org/policy/legalguidance/unhcr/1997/36258>

- **The right to be heard:** parties must have a reasonable opportunity to present their points of view, respond to facts presented by others, and have their arguments considered by the decision-maker.⁷

Refugee

Refugees are people forced to flee their own country and seek safety in another country. They are unable to return to their own country because of feared persecution as a result of who they are, what they believe in or say, or because of armed conflict, violence or serious public disorder. Many have been forced to flee with little more than the clothes on their back, leaving behind their homes, possessions, jobs and loved ones. They may have suffered human rights violations, been injured in their flight, or seen family members or friends killed or attacked. There were 42.5 million refugees globally at the end of June 2025, the most recent reporting period.⁸

Release policy

The release policy often refers to the 'catch and release' policy. This practice refers to the release of asylum seekers into communities while awaiting their immigration court hearings, rather than being held in detention. It typically applies to "low risk cases", such as families, children and people who have credible claims of persecution.

Please consider these definitions, particularly the distinctions between refugees, migrants and asylum seekers. This could be particularly important while writing the resolutions and debating them.

⁷

<https://www.canada.ca/en/ombudsman-national-defence-forces/education-information/civilian-employees/procedural-fairness.html>

⁸ <https://www.unhcr.org/about-unhcr/who-we-protect/refugees>

III. Background Information

Major conflicts affecting asylum seekers

Ukraine-Russia war: Since the beginning of the war in 2022 over 10 million Ukrainians have been displaced with roughly 5.7 million being displaced externally. This has resulted in an influx of asylum seekers, particularly in nearby European countries.

Sudan: Sudan has been riddled by crises and conflicts for decades. Currently more than 14 million people have been displaced, making it the largest displacement crisis worldwide. The current civil war is mainly affected by religious and ethnic conflicts, as well as persistent marginalization and the lasting impacts of colonialism. Most Sudanese refugees have fled to Egypt, Chad and Ethiopia.

The Democratic Republic of Congo: The DRC is mainly driven by a want to control the valuable natural resources found in the region. Armed groups such as the M23 have been committing acts of violence in the DRC for over 30 years. This violence has led to around 1.2 million people seeking shelter in countries such as Uganda and Burundi, while 6.9 million have been displaced internally.

Gang violence in Haiti: Over the past decade, gang activity in Haiti has skyrocketed. They now control not only all paths into the capital, but also a majority of import/export. This criminal atmosphere has made it dangerous for people to live, with the gangs often enacting extortion, kidnappings, and killings. Since 2022, 16,000 people have been killed and about 1,5 million people have been displaced. While the majority stays in Haiti, others manage to make it to Mexico, the US (southern Florida) and other Latin American and Caribbean countries.⁹

9

https://www.unodc.org/unodc/frontpage/2026/January/explainer_-_organized-crime-and-gang-violence-in-haiti.html

Important past resolutions and events

Universal Declaration of Human Rights (1948):

While not legally binding, its Article 14 establishes asylum as a fundamental human-rights principle. It specifically states that everyone has the right to seek and enjoy asylum from persecution in other countries.¹⁰

1951 Protocol Relating to the Status of Refugees (1951 Refugee Convention):

This convention provides the internationally recognized definition of a refugee and outlines the legal protection, rights and assistance a refugee is entitled to receive. It is the first international protocol that defines the term refugee and enforces non-refoulement. The document also outlines the basic minimum standards for the treatment of refugees, including the right to housing, work and education while displaced so they can lead a dignified and independent life. It also defines a refugee's obligations to host countries and specifies certain categories of people, such as war criminals, who do not qualify for refugee status.¹¹ The limits of the convention restricts its protection to persons who became refugees due to events occurring in Europe before 1 January 1951.

Protocol Relating to the Status of Refugees (1967 Protocol):

The 1967 Protocol removed the geographical and time limits that were part of the 1951 Convention (seen above), broadening the spectrum of people aided by it.¹²

1969 OAU Refugee Convention (Africa):

The OAU Convention Governing the Specific Aspects of Refugee Problems in Africa expanded the refugee definition beyond individual persecution to include people fleeing war, occupation, foreign domination, and serious public disorder. This was a major innovation because many refugee movements in Africa involved mass displacement caused by conflict rather than individualized persecution.¹³

Late 1900s, early 2000s in Europe:

¹⁰ <https://www.un.org/en/about-us/universal-declaration-of-human-rights>

¹¹ <https://www.unhcr.org/about-unhcr/overview/1951-refugee-convention>

¹² <https://www.unhcr.org/sites/default/files/legacy-pdf/4ec262df9.pdf>

¹³ https://au.int/sites/default/files/treaties/36400-treaty-36400-treaty-oau_convention_1963.pdf

The European Court of Human Rights strengthened asylum protections by ruling that governments cannot deport people to places where they face torture or inhuman treatment. The European Union developed the Common European Asylum System to harmonize asylum procedures, standards, and responsibilities among member states.¹⁴

2016 New York Declaration for Refugees and Migrants:

The 2016 New York Declaration for Refugees and Migrants is a unanimously agreed upon non-binding political agreement designed to improve global responsibility-sharing and outline broad principles for managing mass movements of displaced people and refugees. The text of the New York Declaration includes a number of principled commitments to fully protect the human rights of all refugees and migrants as rights-holders, regardless of their status and to devise responses to large-movements with full respect for international human rights law.¹⁵

¹⁴ <https://www.europarl.europa.eu/factsheets/en/sheet/151/better-regulation>

¹⁵ <https://www.ohchr.org/en/migration/new-york-declaration-refugees-and-migrants>

Future issues regarding asylum

Global warming:

Not only does global warming have a huge impact on the amount of people who need to flee their homes, but it also makes it harder for those who do. Additionally, the majority of people forcibly displaced by persecution, conflict and violence today live in countries that are highly vulnerable and ill-prepared to adapt to climate change.¹⁶

Who qualifies for asylum:

Global asylum laws are narrowly defined to protect individuals facing persecution based on race, religion, nationality, political opinion, or membership in a specific social group. The issue in this lies with widespread displacement due to climate change, resource scarcity, and extreme poverty not being universally classified as legal grounds for asylum, creating a major gap between those who need to move and those who legally qualify.¹⁷

Externalization on Asylum processing:

Many countries have begun processing refugees outside of the country. For example, Australia -a leading pioneer on the topic- has asylum seekers arrive in processing centers in Nauru or Papua New Guinea. Even after approval, they are often prohibited from settling down in Australia. Others like the UK and the EU have already started going down routes of third country processing. This leads to the legal dilemma on whether processing asylum seekers outside of the intended country opposes non-refoulement, because of possibilities of dangers and less than ideal conditions.¹⁸

¹⁶ <https://www.unhcr.org/what-we-do/build-better-futures/climate-change-and-displacement>

¹⁷

https://www.euaa.europa.eu/sites/default/files/publications/2023-02/2022_12_EUAA_Scenarios_Analysis_Comprehensive_Report_EN.pdf

¹⁸ <https://academic.oup.com/ijrl/article/34/1/120/6619241>

IV. Major state and non-state actors

State members play a crucial role in asylum policy as their domestic policies often shape the fates of those seeking asylum.

Columbia and Venezuela

Columbia hosts a significant number of refugees and asylum seekers from Venezuela due to political repression, social issues and poverty. These issues have led to the displacement of over 20% of the Venezuelan population, making it a human rights issue. Colombia hosts more than 2.9 million Venezuelan asylum seekers making it the largest host of Venezuelan asylum seekers in Latin America.

Member states of the European Union

These countries have a specific obligation to upholding asylum laws and processes, as well as ensuring protection to refugees and asylum seekers. The availability of the right to asylum is mandated within the EU Charter of Fundamental Rights (Article 18), as well as by the 1951 Geneva Convention on the protection of refugees. This entails that all EU member states are required to follow the CEAS (Common European Asylum System), which establishes consistent processing procedures of asylum applications across member states and necessitates that asylum seekers are provided with adequate housing during the time of revision. This emphasises the importance of human rights to EU member states and highlights the EU's commitment to a just asylum procedure. Additionally, many EU member states host a large number of refugees and asylum seekers, such as Germany.

The United States of America

While the USA remains one of the countries with the highest number of asylum applications and asylum seekers, its system is often described as faulty. The United States has both limited criteria on granting asylum, as well as restrictive policy and inconsistent procedure.

Uganda, the DRC and South Sudan

Uganda is known as a large refugee-hosting nation, hosting over 1.7 million refugees and asylum seekers. These are mainly from the neighbouring South Sudan (57%) and the Democratic Republic of Congo (31%), as well as other countries such as Sudan and Burundi. This is due to ongoing conflicts and instability within these countries. Uganda has been praised for its progressive refugee policies, however there are growing concerns due to resource constraints and an increasing number of arrivals.

Ukraine, Afghanistan and Syria

Over half of all refugees worldwide come from these three countries alone. Asylum seekers flee due to ongoing war and conflict in the regions. The war in Ukraine induced by Russia has led to over 5.7 million refugees seeking protection, especially in Europe. As of 2023, there were over 6.4 million Afghan refugees and 6.7 million Syrian refugees seeking refuge due to civil war and ongoing conflict. Afghan refugees are mainly hosted by Iran and Pakistan, while the majority of Syrian refugees are hosted by Turkey.

Non-state actors are crucial in cases where governments are unable or unwilling to provide asylum. Here non-state actors can significantly impact an individual's claim.

Amnesty International

Amnesty International plays a large role in monitoring human rights cases as well as campaigning for governments to uphold asylum seeker's rights. The organization has significant impact on policies and often condemns governments for weak and unprotective practices. Additionally, the organisation provides support services to those in need, such as housing, as well as local involvement, so that ordinary citizens can aid refugees in their communities.

V. Bibliography (optional appendix):

Refugees, Asylum Seekers and Migrants, Amnesty International

<https://www.amnesty.org/en/what-we-do/refugees-asylum-seekers-and-migrants/>

The Refugee Convention in the 21st century – Facts and Myths, Yael Schacher, Refugees International 25.09.2025

<https://www.refugeesinternational.org/the-refugee-convention-in-the-21st-century-myths-and-facts/>

Understanding Key Asylum and Refugee Law Terms for Legal Clarity, Ethosignal Team, Ethosignal, 09.06.2024

https://ethosignal.com/asylum-and-refugee-law-terms/#Key_Legal_Terms_in_Asylum_Processes

Sustainable Development Goals and Refugee Integration, International Catholic Migration Commission, 26.11.2025

<https://www.icmc.net/2025/11/26/sustainable-development-goals-and-refugee-integration/>

Possible, Probable, Plausible: What is ‘credibility’ in Refugee Status Determination?, COMPAS, Kristian Hollins, 01.08.2023

<https://www.compas.ox.ac.uk/article/possible-probable-plausible-what-is-credibility-in-refugee-status-determination>

Legal protection of human rights, COMPASS, Manual for Human Rights Education with Young people

<https://www.coe.int/en/web/compass/legal-protection-of-human-rights>

Joint Statement: The future EU must uphold the right to asylum in Europe, Amnesty International, 09.07.2024

<https://www.amnesty.org/en/latest/research/2024/07/joint-statement-the-future-eu-must-uphold-the-right-to-asylum-in-europe/>

Eastern and Southern Africa, Uganda, UNHCR

https://www.unhcr.org/where-we-work/countries/uganda?dataset=POP&yearsMode=range&selectedYears=%5B2012%2C2026%5D&level=OPR&category=PTY&fundingSource=ALS&compareBy=%5B%22category%22%5D&levelCompare=%5B%5B%22OUGA_ABC%22%5D%5D&viewType=chart&chartType=bar&contextualDataset=BUD&tableView=absolute

Sudan Civil War, Sudanese American Physicians Association, 17.12.2025

<https://sapa-usa.org/sudan-civil-war/>

Why is the Democratic Republic of Congo wracked by conflict?, Amnesty International, 29.10.2024

<https://www.amnesty.org/en/latest/campaigns/2024/10/why-is-the-democratic-republic-of-congo-wracked-by-conflict/>

Explainer: Organized crime and gang violence in Haiti, UNODC

https://www.unodc.org/unodc/frontpage/2026/January/explainer_-organized-crime-and-gang-violence-in-haiti.html

Layout and organisational source:

https://docs.google.com/presentation/d/12KOFIfiDSt1z9xkl69Ey7oqZxp4Cqy7VnRpMr3mL6TE/present?slide=id.g4e3143088a_0_268